

- *Templated Documents*: Counsel relied on boilerplate pleadings and templated discovery numerous entries totaling 18.0 hours, which VW suggests should be reduced by 9.5 hours. Plaintiff argues that the documents are tailored to this case, which is reasonable. It is also merely VW's opinion that the time spent was excessive. No reduction is needed.
- *Unnecessary Flat Fee for \$3,900 for Case Initiation*: VW suggests this unnecessary surcharge be stricken. Plaintiff argues that pre-litigation work is compensable. And, it is merely VW's opinion that this is a surcharge. No reduction is needed.
- *Impermissible Block Billing*: VW suggests numerous entries should be adjusted. Plaintiff argues block billing is not objectionable unless it prevents the court from determining if there are tasks that are not compensable. (*Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1010-1011.) Plaintiff adds that this format of billing actually prevents padding as it joins together closely related tasks. No reduction is needed.
- *Unreasonable Billing for this Motion*: Counsel seeks 14 hours for this motion, which is excessive and unreasonable. VW suggests a 3.2 hour reduction. Here, the time spent is reduced to 8 hours.

As to attorneys' fees, Plaintiff requests \$18,454.00 plus anticipated work (6 hours to prepare for/travel to/attend the hearing on this motion [\$2,700]; and, 1.5 hours to prepare an opposition to a motion to tax costs [\$675].) The anticipated amounts are excessive. As to the additional work on *this* motion, a proposed reduction is needed so, that no more than a total of 8 hours should be spent on this motion. Using the adjusted hourly rate, attorneys' fees should be award in the total amount of \$11,204.00 (29.8 x \$350 per hour is \$10,430.00 [Alam and Diamse]; 0.8 at \$500 per hour is \$400 [Fhima]; 1.7 at \$220 per hour is \$374 [Cindie Ianni, paralegal].)

Multiplier

Plaintiff requests a multiplier because this is purportedly a complicated and risky case. The purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) The adjustment to the lodestar figure constitutes earned compensation that is intended to approximate market-level compensation for services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney's fees. (*Ibid.*) The Court exercises discretion and decline to award an enhancement or positive multiplier.

COSTS

Plaintiff also seeks costs and expenses in the amount of \$718.20. (Dec.Alam, Ex. "C".) VW does not offer any argument against costs and expenses.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501830	PULS VS COMPU-LINK CORPORATION	DEMURRER ON 3RD AMENDED COMPLAINT

Tentative Ruling: Defendant Jett Partners LP's UNOPPOSED Demurrer as to the 5th, 12th, and 13th Causes of Action is sustained without leave to amend. (On 3/24/26, court previously sustained Defendant Jett's Demurrer to the instant causes of action and granted leave to amend.)

The court takes judicial notice of Exhibits 1 through 13 as requested by JETT. These exhibits include certified copies of recorded documents—such as the Deed of Trust, Notice of Default, and Foreclosure Commissioner's Deed Upon Sale—as well as court records from the related unlawful detainer action, *Jett Partners LP v. Tina Puls*, Case Number UDMV2500748. Judicial notice of these public records and court filings is proper under Evidence Code section 452, subdivisions (d), (g), and (h).

Under California law, the failure of a responding party to serve and file points and authorities in opposition may be construed by the court as an admission that the motion is meritorious. *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.

As such, as Defendant Jett asserts regarding the Fifth (Slander of Title), twelfth (Cancellation of Instruments), and thirteenth (Quiet Title) causes of action are barred by issue preclusion. JETT previously obtained a judgment for possession against Plaintiff in the unlawful detainer action (Case No. UDMV2500748). That proceeding, brought under Code of Civil Procedure section 1161a, necessarily determined that JETT “duly perfected” title to the Subject Property through a regularly conducted foreclosure sale.

Plaintiff's current claims for slander of title, cancellation of instruments, and quiet title are founded upon alleged irregularities in that same trustee's sale. Because the issue of ownership and the validity of the foreclosure were already litigated and decided in the unlawful detainer action, Plaintiff is precluded from re-litigating those issues here.

The TAC fails to state a cause of action against JETT because JETT is a bona fide purchaser for value who acquired title without notice of Plaintiff's claims. Recordation of the trustee's deed creates a conclusive presumption of validity in favor of a bona fide purchaser. The TAC admits JETT purchased the property at the foreclosure sale for \$532,000 and does not allege that JETT had notice of Plaintiff's unrecorded claims at the time of purchase.

Leave to amend is denied because there is no reasonable possibility that the defects in these causes of action can be cured. The bar of res judicata arising from the final judgment in the unlawful detainer case is a legal impediment that cannot be overcome by further pleading.